

Motion for Final Approval of Class Action Settlement

Plaintiff seeks preliminary approval of the parties' class action settlement. The motion is supported by insufficient notice. All moving papers and supporting documents shall be served and filed at least 16 court days before the hearing. (Code Civ. Proc., § 1005, subd. (b).) Notice is extended by two court days when service is by electronic means, as it was here. (Code Civ. Proc., § 1010.6, subd. (a)(3)(B).)

The court also observes the class notice and the declaration of counsel Kevin Mahoney both refer to attorneys' fees in the amount of \$68,716.67. However, the court preliminarily approved attorneys' fees of \$67,050, which is one-third of the gross settlement amount and the amount included in the class action settlement agreement. (Mahoney Decl., Exh. A, sec. 4.2.2.) For clarity, the court does not intend to change its order for preliminary approval and when the court can reach the merits of the motion, the court intends to limit attorneys' fees to \$67,050.

The motion for final approval is continued to **August 18, 2026 at 8:30 a.m. in Department 32**. Plaintiff shall file and serve a notice of continued hearing on defendant and file a proof of service by August 4, 2026.

4. S-CV-0049242 David, Dennis v. Taylor Morrison of Cal.

If oral argument is requested, it will be heard on **August 4, 2026 at 8:30 a.m. in Department 32** by the Honorable Trisha J. Hirashima.

Moving party is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Defendants' Demurrer to Complaint

Defendants demur to the second through fourth causes of action alleged in the complaint for breach of contract, breach of express warranty, and breach of the implied warranty of merchantability. Plaintiffs oppose this motion.

A party may demur where the pleading does not state facts sufficient to constitute a cause of action or where the pleading is uncertain. (Code Civ. Proc., § 430.10 (e), (f).) A demurrer tests the legal sufficiency of the pleadings, not the truth of the allegations or the accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleadings are deemed true no matter how improbable they may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, the court does not assume the truth of contentions, deductions, or conclusions of facts or law. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court may only refer to matters outside the pleading that are subject to judicial notice. (*Rea v. Blue Shield of California* (2014) 226 Cal.App.4th 1209, 1223.)

Defendants contend the second through fourth causes of action fail to state facts sufficient to constitute a cause of action and are uncertain pursuant to Code of Civil Procedure sections 430.10 (e) & (f). Defendants further contend the claims are duplicative of a claim under the Right to Repair Act and duplicative of each other. Defendants argue that section 896 is plaintiffs' exclusive method of remedy for construction defects, citing *McMillin Albany LLC v. Superior Court* (2015) 4 Cal.App.5th 241. The court notes *McMillin* recognized an express carve-out for breach of contract claims. (*Id.* at 256; Civ. Code § 943(a).)

It is otherwise noted that each of the subject causes of action alleges that plaintiffs "have been specifically damaged as herein above alleged in paragraph 18." (Compl., ¶¶ 19, 26, 33.) Paragraph 18, in turn, alleges: "The original purchaser Plaintiffs, and each of them, have performed all conditions, covenants, and promises required by the sales contracts in accordance with the terms and conditions of those contracts." (Compl., ¶ 18.) The reference to paragraph 18 appears erroneous, and renders each cause of action ambiguous. The breach of contract claim is also rendered ambiguous by the failure to attach the subject contract or set out the terms verbatim in the body of the complaint. (*Otworth v. Southern Pacific Transportation Co.* (1985) 166 Cal.App.3d 452, 459.)

Based on the foregoing the demurrer is sustained as to the second through fourth causes of action with leave to amend. Any amended complaint shall be filed and served on or before July 31, 2026.

5. S-CV-0053973 Holt of Cal. v. Viking Forebay Holdings

If oral argument is requested, it will be heard on **August 4, 2026 at 8:30 a.m. in Department 32** by the Honorable Trisha J. Hirashima.

Plaintiff's Motion to Compel Further Responses to Special Interrogatories, Set One and Requests for Production of Documents, Set One, and Request for Sanctions

Plaintiff is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Plaintiff moves to compel further responses to special interrogatories, set one and requests for production of documents, set one, and requests sanctions.

Plaintiff served defendant John Taylor with special interrogatories, set one, nos. 1-153 on January 9, 2026. The special interrogatories were accompanied by a declaration in support of additional discovery under Code of Civil Procedure section 2030.050. (See Code Civ. Proc. § 2030.030(c).) Under Code of Civil Procedure section 2030.040(a):

... any party who attaches a supporting declaration as described in Section 2030.050 may propound a greater number of specially prepared interrogatories to another party if this greater number is warranted because of any of the following: